

For the foregoing reasons, the Court **grants** Defendant's motion to set aside default and default judgment. **Defendant is ordered to file a responsive pleading by July 16, 2026.**

In addition, the court notes this action is for less than \$5,000 in damages and is properly heard in the court presiding over limited jurisdiction civil matters. The court transfers and assigns this case for all purposes to Judge Athanasiou, Department 14, currently located in the George C. Carroll Courthouse at 100-37th Street, Richmond, CA 94806.

The court orders the parties to appear at a Case Management Conference in this matter on September 14, 2026 at 8:30 a.m. in Department 14. You may appear remotely by Zoom.

Parties are ordered to file and serve a Case Management Conference Statement ten (10) days in advance of September 14, 2026. The Case Management Conference form is Judicial Council form CM-110. The form can be found at <https://courts.ca.gov/sites/default/files/courts/default/2024-11/cm110.pdf>

To attend by Zoom, please go to the Court's website (<https://contracosta.courts.ca.gov/online-services/court-calendars-and-remote-appearances>) and find the Zoom link for Dept. 14 under "Court Calendars and Remote Appearances."

15. 9:00 AM CASE NUMBER: MSC21-00779
CASE NAME: TEDENEKILSH ZERHIOUN VS. YOSEPH DEMISSIE
*HEARING ON MOTION IN RE: TO ENFORCE JUDGMENT AND FOR ISSUANCE OF WRIT OF POSSESSION
FILED BY: DEMISSIE, YOSEPH
TENTATIVE RULING:

Defendants Hareg Teffera and Yoseph Demissie's motion to enforce the judgment is **continued to August 7, 2026, for further briefing.**

On September 16, 2022, Judge Baskin entered the judgment in this case. The judgement gave Plaintiff 90 days to buyout Defendant. (Judgement ¶15(a).) If Plaintiff is unable to buyout Defendant in 90 days the judgment requires that "the Property will be sold to the highest bidder after being listed. The proceeds of the sale will be divided equally between the parties, less the commission and the mortgage and any

expenses incurred in the course of closing escrow.” (Judgement ¶5(b).)

Because of posttrial motions, there was some confusion about when the 90 days ran, however, on March 20, 2023, Judge Douglas entered an order giving Plaintiff 90 days to complete the buyout process. The order stated that if Plaintiff could not complete the buyout within 90 days then the parties should mutually agree on a real estate agent for sale of the property, or if they cannot agree, each side shall provide two real estate agents to the Court. (March 20, 2023 Order.)

In May 2023, Plaintiff filed a motion to stay sale of the property, arguing that Defendants had prevented her from completing the buyout process. On September 6, 2023, Judge Douglas denied the motion. “The Court finds that Plaintiff has been unable to buy out Defendants and that Defendants' conduct did not prevent Plaintiff from completing the buyout. Therefore, it is now time for the property to be sold to the highest bidder.” (September 6, 2023 Order.) Judge Douglas also appointed Mariama Gebeyehou, East Bay Realtor, DRE 01951088, to act as the listing agent with Hartlove of Dudum Real Estate Group to act as listing agent as the alternative option if Gebeyehou is not willing or able to act as listing agent. (Id.)

Plaintiff appealed the September 6, 2023 order. The Court of Appeal affirmed the order on August 27, 2025. (See Memorandum Opinion in case no. A168634.)

An appeal does not automatically stay a judgment ordering the sale or delivery of possession of real property. (Code of Civil Procedure Section 917.4.) Thus, Defendants continued to try to sell the property. In July 2024, Defendants sought permission to sell the property to the highest bidder. The Court approved the sale of the property on August 26, 2024. The Court then entered two separate orders instructing the Elisor to sign the necessary documents for sale of the property. (September 24, 2024 Order; October 28, 2024 Order.) The Court also ordered that escrow funds from the sale of the property shall be deposited with the Court until further orders for disposition. (September 18, 2024 Order.) This sale apparently fell through.

Plaintiff has remained in possession of the property since this lawsuit was initiated. Defendants argue that Plaintiff was ordered to make monthly payments while she remained in possession. Defendants and their attorney state that Plaintiff stopped making her monthly payments of \$1,380 in September 2023. (Webb dec. ¶16; Teffera dec. ¶¶16-7; Demissie dec. ¶17.) While such an order sounds likely, Defendants

did not provide a copy of that order nor provide the date upon which it was entered. Given the voluminous post-judgment filings, the Court has yet to locate this order.

The Court denies Plaintiff's request for sanctions included in the opposition. The Court also denies Plaintiff's request that she be given the opportunity to buy the property through a special process where she buys out Defendants. Plaintiff is free, however, to bid on the property when it is listed for sale on the open market.

Additional information is necessary regarding the claimed monthly payments and the request for an order requiring Plaintiff to vacate the property. Therefore, this matter is continued for further briefing as follows:

The Court is inclined to reaffirm the prior orders regarding sale of the property to the highest bidder, instructions for the elisor to sign the necessary documents and instructions regarding escrow of funds from the sale. Defendants shall provide a proposed order that includes all the terms requested.

Defendants shall provide copies of all orders that address the post-judgment monthly payments by Plaintiff. If Defendants have additional evidence on the need for the property to be vacant in order for it to be sold, they may provide that evidence.

Defendants proposed order and supplemental filings shall be filed and served by July 10, 2026.

Plaintiff may file and serve a response by July 24, 2026.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-00486
CASE NAME: EMAN MUTHANNA VS. OPPORTUNITY HOUSING GROUP, INC.
***HEARING ON MOTION FOR DISCOVERY TO QUASH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS**
FILED BY: ESTATE OF ADEEP MUTHANNA
TENTATIVE RULING:

Before the court is Plaintiff's motion to quash or in the alternative modify the deposition subpoenas for production of business records issued on February 18, 2026 to T-Mobile USA, INC. (T-Mobile), American Medical Response, Inc., Contra